

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #03	CCRB Case #: 201801122	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 02/01/2018 12:50 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/1/2019	Precinct: 120
Date/Time CV Reported Thu, 02/01/2018 7:08 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/09/2018 1:39 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Thomas Gugliucci	4940	940225	120 PCT
2. POM Michael Meyerson	04186	956931	120 PCT
3. POF Amanda Bruno	21241	962957	120 PCT
4. POM Michael Fasano	00410	963510	120 PCT
5. POM Eric Johnson	07704	956777	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Timothy Chi	29493	939997	120 PCT
2. POM Cory Pilzer	09302	953254	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Thomas Gugliucci	Abuse: Sergeant Thomas Gugliucci entered § 87(2)(b) in Staten Island.	A . Exonerated
B . SGT Thomas Gugliucci	Abuse: Sergeant Thomas Gugliucci forcibly removed § 87(2)(b) to the hospital.	B . Exonerated
C . POM Michael Meyerson	Force: Police Officer Michael Meyerson used physical force against § 87(2)(b)	C . Exonerated
D . POM Michael Fasano	Force: Police Officer Michael Fasano used physical force against § 87(2)(b)	D . Exonerated
E . POM Eric Johnson	Force: Police Officer Eric Johnson used physical force against § 87(2)(b)	E . Exonerated
F . POF Amanda Bruno	Force: Police Officer Amanda Bruno used physical force against § 87(2)(b)	F . Exonerated

Case Summary

On February 1, 2018, § 87(2)(b) filed this complaint with IAB (log no. 2018-5230) (13 Board Review).

On February 1, 2018, § 87(2)(b) placed multiple calls to 911. § 87(2)(b) stated that she had a leg injury that had rendered her immobile, and was throwing up blood. § 87(2)(b) also stated that she was having a panic attack and that she was “not okay.” Sergeant Thomas Gugliucci and Police Officer Michael Myerson, both of the 120th Precinct, responded to § 87(2)(b)’s residence at § 87(2)(b) in Staten Island, hereafter referred to as § 87(2)(b), and entered (Allegation A: Abuse of Authority, Exonerated). § 87(2)(b) was subsequently removed to § 87(2)(b) (Allegation B: Abuse of Authority, Exonerated). § 87(2)(b) left § 87(2)(b) without being discharged, returned home, and placed additional telephone calls to 911. Sgt. Gugliucci and PO Myerson responded to § 87(2)(b)’s home again, along with Police Officer’s Michael Fasano, Eric Johnson, Amanda Bruno, and Timothy Chi, all of the 120th Precinct. § 87(2)(b) stated that she did not want to return to § 87(2)(b). PO Myerson, PO Fasano, PO Johnson, and PO Bruno placed § 87(2)(b) stomach first on her bed and handcuffed her (Allegations C-F: Force, Exonerated). § 87(2)(b) was returned by ambulance to § 87(2)(b).

There were no arrests made or summonses issued as a result of this incident.

There is no video evidence regarding this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Thomas Gugliucci entered § 87(2)(b) in Staten Island.

Allegation (B) Abuse of Authority: Sergeant Thomas Gugliucci forcibly removed § 87(2)(b) to the hospital.

The investigation determined that § 87(2)(b) was removed to § 87(2)(b) twice on § 87(2)(b), and again at § 87(2)(b). § 87(2)(b) described only one instance of being removed to § 87(2)(b) during her in-person statement at the CCRB, at § 87(2)(b). The investigation determined that the incident § 87(2)(b) described was the second instance in which she was removed to § 87(2)(b) on February 1, 2018. § 87(2)(b) did not provide testimony about the circumstances under which she was initially removed to § 87(2)(b) on the morning of February 1, 2018, under the supervision of Sgt. Gugliucci.

Audio below (labeled as 201801122_20180508_1119_DM) captures a conversation between Det. DeJesus from IAB, with 911 dispatch, and the EMT’s. Det. DeJesus reported that § 87(2)(b) called 911 on the morning of February 1, 2018, before Sgt. Gugliucci and PO Meyerson responded to § 87(2)(b). § 87(2)(b) told Detective DeJesus from IAB that she could not move because of a leg injury, that she could not get out of bed because of pain and swelling, and that she was “not okay.” § 87(2)(b) also stated that she had been trying to get help from the

120th Precinct since 3:00 AM in the morning. § 87(2)(b) was crying during her telephone call, and stated that she was having a panic attack.



201801122_20180508_1119_DM.wav

Sgt. Gugliucci (**03 Board Review**) stated that on February 1, 2018, at approximately 8:00 AM, § 87(2)(b) called IAB and stated that she had previously been attacked at the White House. IAB subsequently contacted the 120th Precinct and requested that a supervisor conduct a wellness check on § 87(2)(b) because § 87(2)(b) was not making sense and was an EDP. Sgt. Gugliucci and PO Meyerson responded to § 87(2)(b) and knocked on § 87(2)(b)'s door. § 87(2)(b) invited the officers inside, and then went back to her bed and lay down. § 87(2)(b) may have been wearing a bandage on one knee. § 87(2)(b) mentioned that she had been attacked at the White House, but did not provide any other details about the attack. § 87(2)(b)'s apartment was in a state of disarray. At some point, an additional unit responded, but Sgt. Gugliucci did not recall which officers comprised this unit. § 87(2)(b) was not making sense and Sgt. Gugliucci thought that § 87(2)(b) might have been bipolar, because she was “up and down,” and “all over the place.” Sgt. Gugliucci thought that § 87(2)(b) had “snapped,” and told her that she should go to the hospital to make sure everything was okay. Sgt. Gugliucci requested an ambulance to § 87(2)(b). When the EMT's arrived, they had a conversation with § 87(2)(b). Sgt. Gugliucci did not have a conversation with the EMT's about whether § 87(2)(b) should go to the hospital, but believed they were on the same page because the EMT's did not state that § 87(2)(b) did not need to go to the hospital. Sgt. Gugliucci was the main communicator with § 87(2)(b) after EMT's arrived. Sgt. Gugliucci was trying to convince § 87(2)(b) to go to the hospital. § 87(2)(b) never requested that the officers or the EMT's leave her apartment. Approximately thirty minutes after the EMT's arrived, § 87(2)(b) voluntarily agreed to go to the hospital. § 87(2)(b) was subsequently removed to § 87(2)(b). An officer accompanied § 87(2)(b) to § 87(2)(b). Sgt. Gugliucci did not recall which officer accompanied her. Sgt. Gugliucci then returned to the 120th Precinct stationhouse and did administrative duties.

PO Meyerson (**06 Board Review**) stated that at some point during the morning on February 1, 2018, he responded to § 87(2)(b) with Sgt. Gugliucci to conduct a wellness check for an EDP, because § 87(2)(b) had been calling the police department “nonstop.” When PO Meyerson and Sgt. Gugliucci arrived, they asked § 87(2)(b) if she took any medications. § 87(2)(b) responded that she did, and stated that she had not taken them in several weeks. PO Meyerson did not recall what kind of medication § 87(2)(b) was prescribed. § 87(2)(b) stated that she wanted to go to the hospital, and PO Meyerson and Sgt. Gugliucci called an ambulance for her. § 87(2)(b) did not want to go to § 87(2)(b) but was ultimately transported there, because § 87(2)(b) is the only hospital on Staten Island with a psychiatric ward. However, § 87(2)(b) was compliant, and went to the hospital without any issues. § 87(2)(b) was on crutches, but PO Meyerson observed § 87(2)(b) run towards her door after she left, to lock it. Other officers responded to § 87(2)(b) while PO Meyerson and Sgt. Gugliucci were there, but PO Meyerson did not recall who they were.

The AIDED (**07 Board Review**) prepared by PO Timothy Chi on February 1, 2018, at 7:51 AM states that § 87(2)(b) was an EDP who voluntarily went to the hospital because she was

suffering from anxiety and panic attacks. The AIDED further states that § 87(2)(b) was delusional, and that PO Chi escorted § 87(2)(b) to the hospital in the ambulance.

The DAS Snapshot (**08 Board Review**) in regards to § 87(2)(b) states that she has an EDP history. The snapshot shows three prior AIDED reports prepared in regards to § 87(2)(b)

As per Patrol Guide Procedure 221-13: An emotionally disturbed person (EDP) is a person who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to themselves or others. If an EDP is unarmed, not violent, and is willing to leave voluntarily, they may be taken into custody without the specific direction of a supervisor. Officers should request an ambulance if one has not already been dispatched (**15 Board Review**).

As per People v. DePaula, 179 A.D.2d 424 (1992), the court set the following guideline for the application of the emergency doctrine: the police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property (**14 Board Review**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Exonerated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Exonerated**.

Allegation (C) Force: Police Officer Michael Myerson used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Michael Fasano used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer Eric Johnson used physical force against § 87(2)(b)

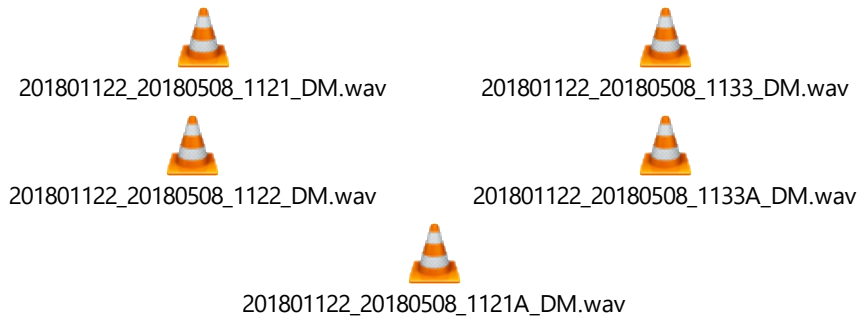
Allegation (F) Force: Police Officer Amanda Bruno used physical force against § 87(2)(b)

§ 87(2)(b) (**01 Board Review**) stated that on February 1, 2018, at approximately 4:00 PM, she called 911 to request an ambulance to her home to go to the hospital. § 87(2)(b) wanted medical attention for injuries she had sustained on January 20, 2018, at the White House, when she was attacked by a supporter of Donald Trump. § 87(2)(b) stated that she sustained bruising to her legs, and that her attacker had tried to gouge her eyes out with a sign. § 87(2)(b) wanted to go to a hospital in Manhattan. Sgt. Gugliucci, PO Meyerson, PO Fasano, PO Johnson, PO Bruno, and PO Chi responded to § 87(2)(b)'s call. § 87(2)(b) did not know why the officers were there, but stated that she allowed them to enter and did not have a problem with them entering her residence. After the officers entered her apartment, § 87(2)(b) laid back down in

bed. The officers stood at the foot of § 87(2)(b)'s bed, and § 87(2)(b) felt that the officers were going to rape or jump her, because they did not look "right." § 87(2)(b) was yelling at the officers. § 87(2)(b) backed up in her bed because she was afraid and knew that "something was going to happen." One of the officers grabbed § 87(2)(b)'s right arm and flipped her over so that she was stomach down on her bed. One of the officers grabbed § 87(2)(b)'s left breast. While § 87(2)(b) was face down on her bed, officers pushed on her upper back, causing her neck to "crack." § 87(2)(b) heard her neck "pop" as a result of the pressure on her upper back. An officer then grabbed § 87(2)(b)'s right leg and bent it at the knee, so that her heel made contact with her buttocks. § 87(2)(b)'s right leg was already injured, and this action caused further injury. § 87(2)(b) first stated that she was "dragged" to the floor by the officers, sit on the floor, and was then handcuffed, and made to walk to the ambulance.

§ 87(2)(b) later said that she was handcuffed on her bed, and that when she felt the officers grabbing her arms, she tensed her arms. After she was handcuffed, the officers dragged her to the floor.

911 records show that § 87(2)(b) made five additional 911 calls after returning home from her first trip to § 87(2)(b) earlier in the day (labeled below as 201801122_20180508_1121A_DM, 201801122_20180508_1121_DM, 201801122_20180508_1133_DM, 201801122_20180508_1122_DM and 201801122_20180508_1133A_DM.). § 87(2)(b) complains of pain and injury to her knee, states that she cannot walk, and states that she is throwing up blood. § 87(2)(b) states that the officers are outside of her door and refusing to come in, and that she does not want to go to § 87(2)(b) because she "almost died" there earlier in the day.



§ 87(2)(b)'s medical records (**02 Board Review**) show that she complained of pain to her hands, knees, and left calf. § 87(2)(b)'s right knee was observed to be mildly swollen. § 87(2)(b) left § 87(2)(b) without being discharged, and was ambulatory and did not appear to have any injuries to her legs. § 87(2)(b) was observed leaving by her reporting doctor and nursing staff. § 87(2)(b) was paged multiple times by the PA system, with no response.

PO Fasano (**04 Board Review**) stated that he received a telephone call to receive to § 87(2)(b) in regards to a past complaint. PO Fasano responded to the location with PO Johnson and PO Bruno. Shortly after PO Fasano arrived, Sgt. Gugliucci and PO Meyerson arrived. § 87(2)(b) verbally told all of the officers to enter. § 87(2)(b) stated that she had been injured at the Women's March, and she wanted to make a report, and go to the hospital. § 87(2)(b) stated

that she had a previous negative experience at § 87(2)(b) during which she slipped and fell on human feces. § 87(2)(b) stated that she had walked out of § 87(2)(b) and now wanted to go to a hospital in Manhattan. By this time, EMS had arrived at the location, and informed § 87(2)(b) that she had to go to a hospital on Staten Island, and that they could not bring her to Manhattan. § 87(2)(b) told the officers and EMS to leave the apartment, and they did so. The officers then received a telephone call from dispatch stating that § 87(2)(b) was calling 911 again. The officers knocked on § 87(2)(b)'s door and she eventually let them back inside. § 87(2)(b) stated that she did not want to go to § 87(2)(b). § 87(2)(b) was informed that if she wanted to go to a hospital in Manhattan, she could do so by calling a cab. § 87(2)(b) then threw her cell phone at PO Johnson, and it bounced off of his chest. Sgt. Gugliucci then stated that § 87(2)(b) was going to be handcuffed and transported to the hospital. § 87(2)(b) flipped over on to her stomach and said that she was not going to go. PO Fasano, PO Johnson, PO Bruno, Sgt. Gugliucci, and PO Meyerson then attempted to grab § 87(2)(b)'s hands to take them out from under her body. PO Johnson, PO Meyerson, and PO Fasano grabbed § 87(2)(b)'s left hand, and Sgt. Gugliucci grabbed § 87(2)(b)'s right hand. No officer used force beyond pulling § 87(2)(b)'s arms behind her back. No officer held or bent either of § 87(2)(b)'s legs. No officer pushed § 87(2)(b)'s upper back or neck. § 87(2)(b) was not dragged off of her bed, or dragged on to the floor.

§ 87(2)(g) PO Bruno did not recall how § 87(2)(b) came to be on her stomach. § 87(2)(b) on her stomach on her bed, with one arm locked either underneath her body or to her side. PO Bruno assisted in trying to pull both of § 87(2)(b)'s arms behind her back. PO Bruno did not make physical contact with § 87(2)(b) beyond pulling her arms behind her back. PO Bruno did not see any other officer use additional physical force against § 87(2)(b) beyond pulling her arms behind her back. PO Bruno did not recall what other officers were making physical contact with § 87(2)(b) at this point. § 87(2)(b) was “lifted” out of bed and stood up, at which point she “dead-weighted herself,” and fell to the floor. PO Bruno was not making physical contact with § 87(2)(b) when this happened. § 87(2)(b) requested that PO Bruno help her get up, because PO Bruno was the only female officer present, and she did not want the male officers to touch her. PO Bruno agreed, and helped § 87(2)(b) up. § 87(2)(b) then walked out of her apartment, and into the ambulance.

§ 87(2)(g) PO Meyerson stated that he only made physical contact with § 87(2)(b)'s arms, as officers attempted to handcuff her. PO Meyerson did not recall which officers assisted him.

Sgt. Gugliucci (**03 Board Review**) stated that he did not participate in handcuffing § 87(2)(b). Sgt. Gugliucci thought that two officers were involved in handcuffing § 87(2)(b). Sgt. Gugliucci did not hear § 87(2)(b) complain that her neck had been snapped. Sgt. Gugliucci did not recall seeing a female officer present at the location. No officer used physical force against § 87(2)(b) except for pulling her arms behind her back.

According to Patrol Guide Procedure 221-02, an officer may use only the reasonable force necessary to gain control or custody of a subject (**09 Board Review**).

§ 87(2)(g)

§ 87(2)(b) she first stated that she was dragged to the floor and handcuffed, but later said that she was handcuffed on her bed and then dragged to the floor. Further, § 87(2)(b) described backing away from the officers, and tensing her arms to prevent them from handcuffing her. § 87(2)(g)

After § 87(2)(b) returned home from this hospital trip, she placed multiple additional 911 calls, stating that she was injured and in distress, prompting officers to respond to her home again, to return her to the hospital for the second time that day, raising the officers level of concern about § 87(2)(b)'s physical and mental state. § 87(2)(g)

it is recommended that **Allegation C, Allegation D, Allegation E, and Allegation F** be closed as **Exonerated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (**11 Board Review**).
- Sgt. Gugliucci has been a member of service for seven years and has five previous allegations, with no substantiations. § 87(2)(g)
- PO Meyerson has been a member of service for four years and has no previous allegations.
- PO Bruno has been a member of service for two years and has no previous allegations.
- PO Fasano has been a member of service for one year and has one previous allegation, and no substantiations. PO Fasano's previous allegation was for physical force (CCRB Case 201804391), and this allegation was closed as exonerated.
- PO Johnson has been a member of service for four years and has one previous allegation, and no substantiations. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 212 3

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date